ACC
ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	28th Commission Meeting
DATE:	17 June, 2026
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	**Present monthly update on the escrow account – EMD, DoPS** *The meeting noted that the escrow account closing balance increased from Nu. 34,799,907.84 in April 2026 to Nu. 47,275,195.48 in May 2026. It was also noted that the last deposit to the revenue account was in August 2025. The details are as in **Annexure I.*** *The copy of the presentation is in **Annexure II.*** *The overall compliance rate stood at 99.45%, with Schedule I recording 98.62% compliance and Schedule II recording 99.47% compliance. It was noted that the overall compliance rate had reduced slightly compared to the previous two income years.* *It was apprised that that there were 10 non-declarants (1 under Schedule I and 9 under Schedule II). The Schedule I non-declarant had failed to submit the declaration despite repeated reminders, while several Schedule II cases involved separation from service, suspension, or pending*	The Commission directed EMD, DoPS to review the escrow account balance of Nu. 47.275 mn, particularly the Nu. 15.126 mn related to closed cases, and advise the Commission on the appropriate disposition of the funds, including whether they should be transferred to the revenue account.
2	**Present AD Compliance Report for the Income Year 2025 – ADMD, DoPE**	The specific Commission's directive on the non-declarants were as follows:

#	Declarant's detail	Reason/ ADMD Recommendation	Decision
1	Thinley, Executive Director Nazhoen Lamtoen	Repeated reminders were issued through phone calls and emails. Recommended imposing the prescribed penalty.	Endorsed
2	Leki Wangchuk Accounts Asst. MoF	The declarant has been on suspension with 50% salary. Recommended waiving the penalty as the Ministry could not trace him.	Impose the prescribed penalty. The declarant is required to file the declaration during the suspension period. However, can recover the penalty once he is traceable.
3	Sonam Tshering Dy. EE MoIT	The declarant was on study leave, during which filing was not required. Further, the agency also failed to obtain the declaration upon vacation	Endorsed.

declaration, for which appropriate actions were proposed.			of office. Recommended waiving the penalty and issuing a cautionary notice to the Ministry.	
	4	Chunu Ghalley Asst. Engineer-IV Samdrup Jongkhar Regional Office, MoIT	The declarant was on EOL and resigned while on EOL. The agency failed to obtain the declaration upon vacation of office. Recommended waiving the penalty and issuing a cautionary notice to the agency. It was also noted that, since 2025, officials going on EOL are made to file declarations, although this is not required under the AD Rules.	Endorsed.
	5	Tshering Dorji Sr. laboratory Officer RCDC MoH	The declarant was in Australia and did not receive the notification as it was sent to his official email, to which he had no access. Similar cases had previously been waived. Recommended waiving the penalty and issuing a cautionary notice to the agency for failing to obtain the declaration upon vacation of office.	Endorsed.
	6 - 10	Kinley Wangmo; Pelden Singye; Namgay Phuntsho; Sherub Wangmo; Tshoki.	Recommended imposing the prescribed penalty for failure to comply with the declaration requirement.	Endorsed

The Commission discussed the following :

- *Enforcement of Vacation of Office (VoO) Declaration Requirement*: The Commission discussed the continued non-compliance with the requirement for covered persons to submit a VoO declaration before separation from service. It noted that, despite the requirement under the AD Rules, many agencies continue to process separations without ensuring compliance, making the current enforcement mechanism largely reactive. As an interim measure, the Commission directed ADMD, DoPE to request RAA for their support to verify AD compliance before issuing audit clearances. For the longer term, ADMD, DoPE was directed to explore institutionalizing AD

		clearance as a mandatory pre-condition for separation by consulting relevant agencies, including RAA, RICBL, NPPF, and RCSC, and establishing a mechanism whereby individuals cannot complete the vacation of office process without obtaining AD clearance, similar to existing audit or financial clearance requirements. - *Repeated non-complainces*: Noted the AD Compliance Audit observation on repeated late and non-declarants. ADMD informed the Commission that 14 declarants had records of repeated non-compliance in previous reporting years. It was further apprised that the current AD Rules do not provide for administrative actions beyond the prescribed penalties, and therefore issuing cautionary notices had been proposed. The Commission directed that separate cautionary notices are unnecessary. Instead, penalty notices should indicate that the declarant is a repeated offender. However, directed to to review this during the revison of the AD rules. - *Lack of seriousness by declarant*: The Commission reminded ADMD of its earlier directive to reduce the reporting burden on declarants by minimizing the need for them to manually provide the value of their assets. ADMD was directed to explore enhancements to the AD System to enable the ACC to automatically determine or validate asset values through integration with relevant data repository agencies and pre-populate such information where feasible. Directed ADMD, DoPE to immediately review this and apprise the Commission on the proposal. - With regard to the other operational challenges, the Commission directed ADMD to undertake a comprehensive review and develop proposals for consideration during the revision of the AD Rules and the enhancement of the AD System. These proposals may be taken up together with the observations arising from the AD Compliance Audit.
3	**Apprise on the HRC's recommendations – HRS** *Apprised the invitation received under the Indian Technical and Economic Cooperation (ITEC) Programme for a course to be conducted at the CBI Academy, India. The HRC sought the Commission's guidance on whether such training opportunities should be availed and requested advice on the process to be followed.*	Since there is an established process for availing such training opportunities, directed HRS to consult the RCSC and follow the prescribed procedures. It was noted that if relevant and beneficial, the ACC should ~~mamixe~~ maximize from such programmes.

4	**Apprise status of Endowment Fund – PPD** *The status of the ACC Endowment Fund, with a principal balance of Nu. 3.241 million and accrued interest of Nu. 0.385 million, was noted.* *This was in line with the proposal to use the accrued interest as the ACC's institutional contribution towards the construction of the 108 Chortens at GMC, noting that it would avoid the use of government resources and any involuntary staff contributions.* *It was also noted that accrued interest had previously been used for institutional purposes, including the construction of the Founders' Gallery.*	The Commission directed that the proposal be discussed further at the next Management Meeting, including the option of using the accrued interest and inviting voluntary staff contributions to top up the amount to Nu. 0.5 million, without burdening the staff.

Commissioner **Commissioner** **Chairperson**